

23NWCV03046 23NWCV03046

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-08-25

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Case Number: 23NWCV03046 Hearing Date: August 25, 2026 Dept: P

ROBBY SUMOLANG v.

WOODRUFF APARTMENTS, LLC

CASE NO.: 23NWCV03046

HEARING: 08/25/2026 @

9:30 AM

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TENTATIVE ORDER

Petitioner Pei Mei Sumolang's petition for approval of compromise of claim is CONTINUED to Thursday, September 3, 2026 at 9:30 AM. Petitioner is instructed to file the omitted proposed order by September 1, 2026.

Moving party to give notice.

Petitioner Pei Mei Sumolang (Petitioner) petitions for approval of compromise of claim.

Background

On September 5, 2023, Plaintiff Robby Sumolang (Plaintiff or Claimant) filed this personal injury action against Defendant Woodruff Apartments, LLC (Defendant) and Does 1 through 100. The complaint alleges that Plaintiff, a tenant in the Woodruff Apartments community, owned by Defendant

and located at 11710 Woodruff Avenue, Bellflower, California 90706, sustained injuries on November 29, 2021 after grabbing on to a loose handrail on a stairwell which caused Plaintiff to flip up and over the handrail and fall headfirst. (Complaint, ¶¶ 5-8.) The complaint asserts a single cause of action for negligence based on premises liability.

On July 24, 2024, the Court granted Petitioner's Application for Appointment of Guardian Ad Litem for Plaintiff.

On August 2, 2024, during a Mandatory Settlement Conference, this action was settled with the Court's participation.

Legal Standard

A Petition for approval of compromise of claim or action or disposition of proceeds of judgment for minor or person with a disability must conform with Code of Civil Procedure section 372 and Probate Code sections 2504 and 3600 et seq. Such a petition "must be verified by the petitioner and must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise." (Cal. Rules of Court, rule 7.950.) Moving papers should include the Petition of Guardian Ad Litem for Compromise of Disputed Claim of Minor or Person with Disability (Petition) on Form MC-350 and an Order Approving Compromise of Minor's Claim (Order) Form MC-351.

Discussion

Petitioner, as Guardian ad Litem and wife of Claimant, petitions for approval or compromise of claim or disposition of proceeds for Claimant. Petitioner provides a Petition on Form MC-350. This Petition is unopposed.

Allocation

Defendant will pay \$380,000 to Plaintiff in exchange for release of all claims Plaintiff asserts against them. (Pet., ¶ 10; Attach., 10c.) Claimant will receive \$172,477.94 as a net recovery. (Pet., ¶ 10c.)

Medical Expenses

The total medical expenses paid is \$357,373.62. (Pet., ¶ 12a.) The Petition indicates that \$50,212.38 of the medical expenses will be paid or reimbursed from the proceeds. (Pet., ¶ 12a.) The Petition also indicates that there are no statutory or contractual liens for payment of Claimant's medical expenses. (Pet., ¶ 12b.)

Attorney's Fees & Costs

The Petition seeks approval of \$152,000.00 in attorney's fees. (Pet., ¶ 13; Attach., 13a.) This represents 40%, as reflected in the retainer agreement signed by Petitioner. (Hall Decl., ¶ 4; Attach., 13b.) The Petition also seeks \$5,309.68 in litigation expenses as supported in an Itemization of Litigation Costs. (Pet., ¶ 13b.)

Based on the declaration of counsel and information provided in this Petition, the Court finds this amount reasonable.

Disposition of Settlement Funds

The Petitioner requests that the disposition of the proceeds be deposited in insured accounts in one or more financial institutions in this state, subject to withdrawal only on authorization of the Court. (Pet., ¶ 18b(2).)

Petitioner states that the net proceeds are to be deposited in an insured account at U.S. Bank - Manhattan Beach Branch, located at 3300 N. Sepulveda Blvd., Manhattan Beach, California 90266. (Pet., Attach., 18b(2).)

Additional Orders

The Petition requests: (1) That, upon deposit of the net settlement proceeds of \$172,477.94 into the blocked account described in Attachment 18b(2), Pei Mei Sumolang be authorized to immediately withdraw and transfer to herself \$144,554.90, representing the 2026 Community Spouse Resource Allowance reduced by her own existing countable resources as reflected in Exhibit A to her declaration; and (2) That the remaining balance after the authorized transfer remain in the blocked account described in Attachment 18b(2),

subject to withdrawal only upon further order of this court. The Court finds these additional orders reasonable.

Conclusion

Based on the foregoing, the Court finds the Petition fair and reasonable.

However, Petitioner failed to submit a Proposed Order on Form MC-351. The Court continues the hearing on this Petition to permit Petitioner to file a Proposed Order.

Accordingly, Petitioner's petition for approval of compromise of claim is CONTINUED to Thursday, September 3, 2026 at 9:30 AM. Petitioner is instructed to file the omitted proposed order by September 1, 2026.